

STRIVE PULSE

MUTUAL NON-DISCLOSURE AGREEMENT

Fill in the details below before sending

Party Details

All references to the “Receiving Party” or “Disclosing Party” below apply mutually to both Strive Pulse and the party named here, depending on who discloses information to whom.

Other Party's Name	
Organization (if any)	
Address / Location	
Purpose of Discussion	
Effective Date	

This Mutual Non-Disclosure Agreement (“Agreement”) is entered into between Strive Pulse (operated by the founders of Strive Pulse Pvt. Ltd., under incorporation, Surat, Gujarat, India) (“Strive Pulse”) and the party named above (the “Other Party”), collectively the “Parties,” for the purpose specified above.

1. Purpose

The Parties wish to explore a potential business relationship and, in doing so, may disclose certain confidential and proprietary information to one another. This Agreement sets out the terms under which such information is protected.

2. Confidential Information

“Confidential Information” means any non-public information disclosed by either Party, whether written or oral in any other form, including but not limited to product plans, technical designs, business and financial information, student or user data, pricing and pilot or partnership terms, that is designated as confidential or that a reasonable person would understand to be confidential given the nature of the information and circumstances of disclosure.

3. Obligations of the Receiving Party

- Use the Confidential Information solely for the purpose stated above
- Not disclose the Confidential Information to any third party without the Disclosing Party's prior written consent
- Protect the Confidential Information with at least the same degree of care used to protect its own confidential information and no less than reasonable care
- Limit access to the Confidential Information to employees, officers or advisors who need to know it for the stated purpose and who are bound by similar confidentiality obligations

4. Exclusions

Confidential Information does not include information that:

- (a) is or becomes publicly available through no fault of the Receiving Party;
- (b) was already lawfully known to the Receiving Party before disclosure;
- (c) is independently developed without use of the Confidential Information; or
- (d) is rightfully received from a third party without a duty of confidentiality.

5. Term

This Agreement is effective as of the Effective Date specified above and continues for two (2) years thereafter. The confidentiality obligations in Section 3 survive for three (3) years from the date of each disclosure, regardless of when this Agreement ends.

6. Return or Destruction

Upon written request of the Disclosing Party, the Receiving Party will promptly return or destroy all materials containing Confidential Information, except for copies retained solely for legal or compliance purposes.

7. No License; No Obligation

Nothing in this Agreement grants either Party any license or rights to the other's intellectual property and nothing obligates either Party to proceed with any business relationship, pilot or transaction.

8. Remedies

The Parties agree that unauthorized disclosure of Confidential Information may cause irreparable harm for which monetary damages alone may be inadequate and that the Disclosing Party is entitled to seek injunctive relief in addition to any other available remedy.

9. Governing Law & Dispute Resolution

The Parties agree to first attempt to resolve any dispute through good-faith discussion. If unresolved within 30 days, the dispute shall be referred to mediation and if mediation fails, to arbitration under the Arbitration and Conciliation Act, 1996, with the seat of arbitration in Surat, Gujarat. This Agreement is governed by the laws of India.

*** End of Agreement ***

Signatures

The Parties, by signing below, confirm their agreement to the terms above.

For Strive Pulse:

Prajapati Yash Jayeshbhai

Founder, Strive Pulse

For the Other Party (named in the Party Details table above):

Name:

Designation:

Both signatures are dated as of the Effective Date specified in the Party Details table above.
